		indemnity, contribution, expert analysis, and procedural coordination of discovery and motion practice among many separately represented parties." (Gruetter Decl. ¶4.) The Code of Civil Procedure provides an extensive framework for conducting discovery, filing pleadings, appointing referees, etc. These are the types of issues that the judges of this court's unlimited civil panel are experienced in handling. It is not uncommon for them to hear cases with many witnesses and voluminous documents. They frequently address the best way to present a case, including bifurcating or severing multiple issues and designating the sequencing of issues. They have the ability to schedule multiple conferences in advance of a trial date for issue resolution and planning purposes. Further, there is no evidence the parties have been unable to serve discovery or issue subpoenas such that specialized case management is necessary. In fact, there are no pending discovery motions. The fact that DiVita has named its 15 subcontractors in a cross-complaint does not compel a finding that the case is "complex." To the contrary, the court is charged with the duty to consider multiple factors in making such a determination. (See, Rule 3.400(b).) When the totality of the circumstances presented by DiVita are considered, the court concludes this case does not meet the standards of rule 3.400 for complex case designation. Accordingly, the motion is **DENIED**. DiVita's counsel is ordered to give notice of this ruling.
12.	***Young vs. Byars*** *2017-00924659*	Before the court is the latest motion for attorney fees filed by judgment assignee Collect Co. (Assignee) seeking $19,819.09 in attorney fees and costs from judgment creditors/assignors William Young and Jennifer Young (Assignors). As more fully set forth below, the motion is **GRANTED**. Assignors succeeded in obtaining a default judgment in this case against defendants. They then signed an agreement (Agreement) assigning their rights to the judgment to Assignee. (Ammar Decl. ¶ 4, Ex. A; ROA 156.) After Assignee began efforts to collect on the judgment, Assignors began a lengthy series of motions, applications, and lawsuits challenging the validity of the Agreement and seeking to prevent Assignee from collecting on the judgment. The validity of the Agreement and Assignee's rights, however, have been determined and upheld by Judge Griffin of this court and affirmed by the Court of

Appeal. (Lula Decl., Ex. A; ROA 970.) Nonetheless, Assignors have continued in their efforts to invalidate the Agreement which has resulted in multiple attorney fee awards against Assignors pursuant to the terms of the Agreement and Code of Civil Procedure section 128.5. This motion is the latest motion for attorney fees by Assignee to recover it attorney fees and costs for repeatedly and successfully opposing Assignors challenges to the Agreement, prior fee awards, and Assignee's efforts to collect on those awards.

Under the express terms of the Agreement, Assignors agreed to indemnify Assignee and to pay Assignee's attorney fees and costs. (Ammar Decl., Ex. A § 8.) The Agreement also permits the prevailing party (between Assignee and Assignors) in any legal action to recover reasonable attorney fees and costs. (Ammar Decl., Ex. A § 10.)

By this motion, Assignee seeks to recover the attorney fees and costs it has incurred in responding to Assignors' litigation efforts from March 2025 to May 2026, as well as the fees and costs incurred in connection with this motion. Assignee has successfully opposed all Assignors' efforts during this time period and therefore is the prevailing party as against Assignors in connection with these litigation efforts in this case. Accordingly, under the terms of the Agreement and pursuant to Civil Code section 1717, subdivision (a), and Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), the court again finds Assignee is entitled to recover attorney fees and costs from Assignors. The court also finds Assignee is entitled to recover its attorney fees and costs pursuant to Code of Civil Procedure section 128.5 because those fees and costs were again incurred as a result of Assignors' actions or tactics, made in bad faith, that are frivolous.

As the U.S. District Court found in Assignors' lawsuit against the prior judge and numerous other parties connected to this case, the $730 hourly rate for Assignee's counsel is reasonable based on the rates for this type of work in the Orange County legal community. The court also finds the number of hours Assignee's counsel has incurred in responding to Assignors' efforts to be imminently reasonable and the costs to be appropriate and reasonable as well.

Based on the foregoing, the motion is **GRANTED**, and the court therefore awards a total of $19,819.09 in attorney fees and costs in favor of Assignee and against Assignors.

		Assignee's counsel is ordered to give notice of this ruling.
13.	***Claim of De Leon*** *2021-01209589*	Before the court is the motion of petitioner People of the State of California (Petitioner) for Default and Default Judgment of Forfeiture regarding seized property in the form of $34,068 in United States Currency. The court will not post a tentative ruling on the merits. Instead, counsel should appear to discuss the applicability and impact of Code of Civil Procedure section 583.310 et seq. Section 583.310 provides, "An action shall be brought to trial within five years after the action is commenced against the defendant." Section 583.360 provides, "(a) An action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. [¶] (b) The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." As these statutes indicate, the court is required to dismiss an action if it is not brought to trial within five years of commencement unless an extension, excuse, or tolling established by statute extends the five-year period. The burden is on the plaintiff or petitioner to establish through admissible evidence some statutorily recognized basis for extending or tolling the five-year period. The court may not create any additional excuses beyond those established by the governing statutes. Civil forfeiture proceedings are civil in nature and generally governed by the Code of Civil Procedure unless inconsistent with the forfeiture statutes. Indeed, Health and Safety Code section 11488.5, subdivision (c)(3), provides, "The provisions of the Code of Civil Procedure shall apply to proceedings under this chapter unless otherwise inconsistent with the provisions or procedures set forth in this chapter. However, in proceedings under this chapter, there shall be no joinder of actions, coordination of actions, except for forfeiture proceedings, or cross-complaints, and the issues shall be limited strictly to the questions related to this chapter." Health and Safety Code section 11488.4, subdivision (a)(1), provides, "A petition under this section is an unlimited civil case, regardless of the value of the seized property." Accordingly, it would appear the five-year mandatory dismissal rule established by Code of Civil Procedure section 583.310 et seq. applies to civil forfeiture cases such as this one, and requires them to be brought to trial within five years of commencement or be subject to mandatory